IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH, (COURT-II)

Item No. 1
CA-(CAA)-47(ND)2021

IN THE MATTER OF:

ABA Builders Ltd. With Vandana GrihaNirman Ltd.	**...**	**Applicant/Petitioner**

Under Section: 230-232

Order delivered on 28.04.2021

CORAM:

SHRI. ABNI RANJAN KUMAR SINHA,
HON'BLE MEMBER (J)

SHRI. L. N. GUPTA,
HON'BLE MEMBER (T)

PRESENT:

ORDER

Order Pronounced in the Open Court today.

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Ashwani

NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-47/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

ABA BUILDERS LIMITED

... Non-Applicant /Transferor Company No.1

AND

M.A MARKET SERVICES PRIVATE LIMITED

...Applicant / Transferor Company No. 2

AND

KAILASHPATI EXIM PRIVATE LIMITED

...Applicant / Transferor Company No. 3

AND

STRATEGIC INFOSOFT PRIVATE LIMITED

...Applicant/ Transferor Company No. 4

WITH

VANDANA GRIHA NIRMAN LIMITED

...Non-Applicant /Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on :28.04.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)
SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Palash Aggarwal, Adv.

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)47/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013 filed by the Applicant/Transferor Companies No.2, 3 and 4. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation' (hereinafter referred as **"Scheme"**), which shall take effect from the 'Appointed Date' of 01.04.2021.

2. That ABA Builders Limited (hereinafter referred as the **"Transferor Company No.1"),** having CIN no. U70101WB1988PLC045438 is a private limited company incorporated on 28.10.1988 under the Erstwhile Companies Act, 1956. The registered office of the Transferor Company No.1 is situated at 16 Chowringhee Mansion 30, J.L. Nehru, Kolkata-700016.

3. That M.A Market Services Limited (hereinafter referred as the **"Transferor Company No. 2"**) having CIN no. U51502DL2012PTC236790 is a company incorporated on 31.05.2012 under the Erstwhile Companies Act, 2056. The registered office of the Transferor Company No.2 is situated at F-28, F/F Preet Vihar, Near Sagar Ratna Restaurant, New Delhi-110092.

4. That Kailashpati Exim Private Limited (hereinafter referred as the **"Transferor Company No. 3"**) having CIN no. U25111DL2005PTC139956 is a company incorporated on 24.08.2005 under the Erstwhile Companies Act, 2056. The registered office of the Transferor Company No.3 is situated at D-277 2nd Floor Anand Vihar, New Delhi-110092.

5. That Strategic Infosoft Private Limited (hereinafter referred as the **"Transferor Company No. 4"**) having CIN no. U72900DL2006PTC154194 is a company incorporated on 22.09.2006 under the Erstwhile Companies Act, 1956. The registered office of the Transferor Company No.4 is situated at 36, Pushpanjali Vikas Marg, New Delhi-110092.

6. That Vandana Griha Nirman Limited (hereinafter referred as the **"Transferee Company"**) having CIN no. U45201WB1996PLC082079 is a company incorporated under the Erstwhile Companies Act, 1956 on 22.11.1996. The registered office of the Transferee Company is situated at 42, Shibtala Street, Kolkata-700007.

7. That the present Petition has been combinedly filed by the Transferor Company No. 2, 3 and 4. Therefore, together hereinafter, they are referred as

'Applicant Companies'. That the Registered offices of all the Applicant Companies are in Delhi and therefore, the jurisdiction lies with this Tribunal.

8. However, the registered offices of the Transferor Company No.1 and Transferee Company are situated at West Bengal, which does not fall within the Territorial Jurisdiction of this Bench. Therefore, the Transferor Company No. 1 and the Transferee Company shall seek approval of the Scheme from the Bench of the appropriate Jurisdiction. That the directions passed vide this order shall be confined to Applicant Companies only.

8. It is seen from the Application that the Board of Directors of all the Applicant Companies vide separate meetings held on 10.02.2021 have approved the proposed 'Scheme of Amalgamation'.

9. It is stated by the Applicant Companies that the aforesaid Scheme of Amalgamation will result in the following advantages:

> *"i) For the optimum running, growth and development of the business and undertakings of the Transferor Companies and the Transferee Company with their combined resources and a larger capital and asset base, it is considered desirable and expedient to amalgamate the Transferor Companies with the Transferee Company in the manner and the terms and conditions stated in this Scheme of Amalgamation.*
>
> *ii) The Amalgamation will enable appropriate consolidation and integration of the activities of the Transferor Companies and the Transferee Company with pooling and more efficient utilization of their resources, reduction in overheads and other expenses and improvement in various other operation parameters. The amalgamation will result in the formation of a larger and stronger entity having greater capacity of conducting its operation more efficiently and competitively…."*

10. That all the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under Companies Act 2013.

11. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors confirming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

12. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheets as on 31.03.2020.

13. That the position regarding the Applicant Company-wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised below:

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
M.A. Market Services Private Limited Applicant / Transferor Company No.2	13	100%	4	100% (in value)
Kailashpathy Exim Private Limited Applicant/ Transferor Company No.3	3	100%	2	100% (in value)
Strategic Infosoft Private Limited Applicant /	2	100%	1	100% (in value)

Transferor Company No.4				

14. That all the shareholders of the Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of all the Applicant Companies is dispensed with.

15. That the '100% (in value)' of unsecured creditors of all Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of all the Applicant Companies is also dispensed with.

16. Since there are no Secured Creditors in any of the Applicants Companies, the requirement of convening their meeting does not arise.

17. **The Application is allowed in the aforesaid terms in respect of Applicant Companies only.**

-Sd-

(L. N. Gupta)
Member (T)

-Sd-

(Abni Ranjan Kumar Sinha)
Member (J)